



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

May 26, 2010

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

DOT-SP 14983

EXPIRATION DATE: August 31, 2010

1. GRANTEE: Tech Alaska, Inc.
Red Dog Operations
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-way transportation in commerce of certain hazardous material which exceed the quantity limitations specified for transportation by cargo aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Column (9B) in that the quantity limitation is exceeded for transportation by cargo aircraft; and § 172.302(c) in that the marking requirement is waived.

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5. BASIS: This emergency special permit is based on the application of Tech Alaska, Inc. Red Dog Operations dated February 27, 2010, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Xanthates	4.2	UN3342	III
Combustible liquid, n.o.s. (Miner Oil, Kerosene)	Combustible liquid	NA1993	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings consist of the following:

(1) No more than one hundred (100) rigid composite intermediate bulk containers (IBC) made of high pressure, laminated woven polypropylene, coated with an inner PVC plastic bag. The IBCs contain no more than 750 Kg of Xanthates and the inner bags are heat-sealed. The packagings conform with Ten-E Packaging Services, Inc. test report #09-4069 and are marked as follows: 11HG2/Y/*/USA/+AA5620/1474/810/** where * is the month and year of manufacture and ** is the tare mass of the individual IBCs.

(2) No more than seven (7) rigid composite IBCs made of steel with a rigid plastic inner receptacle for liquids. The IBCs contain no more than 2,760 lbs. of Miner Oil and Kerosene and are closed per the manufacturer's closing instructions. The packagings are Mauser Corp. model SM13 275 gallon composite IBCs and are marked as follows: 31HA1/Y/08 09/USA/M4119/3800/2038/1041/60/100/08 09/08 09.

- b. OPERATIONAL CONTROLS - The 11HG2 IBCs will be stowed in 42"x42"x41" multilayered cardboard box and will be securely strapped to pallets for handling by a forklift. All IBCs will be securely blocked and braced to ensure no movement during transportation. The materials may not be shipped on the same flights.
8. SPECIAL PROVISIONS:
- a. A current copy of this special permit must be maintained at the facility where the package is offered or reoffered for transportation.
- b. The authorized air carrier is Northern Air Cargo.
- c. Seven flights are authorized from Anchorage, Alaska to Red Dog Mine, Alaska.
- d. Marking the special permit number on each packaging is waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard the aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: NELSON